BY ORDER OF THE COMMANDER UNITED STATES AIR FORCES IN EUROPE AND AIR FORCES AFRICA

UNITED STATES AIR FORCES IN EUROPE INSTRUCTION 36-201

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Personnel

USAFE-AFAFRICA SUMMER AND SCHOOL YEAR EMPLOYMENT PROGRAM

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This instruction implements Air Force Policy Directive 36-2, *Civilian Recruitment and Placement and AFMAN 36-204, Overseas Employment, Summer and Student Employment of Family Members in Foreign Areas*. It provides United States Air Forces in Europe and Air Forces Africa (USAFE-AFAFRICA) policy, guidelines, and procedures for Appropriated Fund Summer and School Year Student Employment Programs, and is used to establish full-time summer and/or part-time student employment programs for college and high school-age family members of military and civilian employees. This supplement does not apply to the Air Force Reserve and Air National Guard (ANG). The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, and T-3") number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the OPR using AF Form 847, *Recommendation for Change of Publication*. See **Attachment 1** for a list references, acronyms, and terms. See **Attachment 2** for student employee pay and leave entitlements.

SUMMARY OF CHANGES

This USAFE-AFAFRICA Instruction has been substantially revised and must be completely reviewed. Major changes include: format change, sections removed; accounting codes updated; authorities clarified; terminology, organization changes, references, and definitions updated; compliance tier waiver authorities added as approved by the Inspector General Advisory Board per AFI 33-360, *Publications and Forms Management* and updates HQ USAFE-AFAFRICA office symbols.

1. Policy, Objective, and Planning.

1.1. **Policy.** Consistent with the availability of resources, USAFE-AFAFRICA appropriated fund activities will operate the student employment programs as prescribed in this instruction. Activities of other commands which are serviced by a USAFE-AFAFRICA civilian personnel flight (CPF) are encouraged to participate in these programs by identifying and funding their student positions.

1.2. **Objective.** The objective of the USAFE-AFAFRICA student employment programs is to accomplish necessary work through the temporary employment of US citizen student dependents. As a by-product of this objective, students are given the opportunity to gain work experience and to earn money while in the overseas area. For information concerning education-related work assignments for students in a nonpay status, refer to Title 5, Code of Federal Regulations, Part 308, *Volunteer Service*.

1.3. **Advance Planning.** Careful advance planning is important to ensure the success of the student employment programs. Therefore, civilian personnel officers will ensure that all necessary preparatory actions, including the following, are initiated in a timely manner and subsequently monitored to completion:

1.3.1. Provide appropriate information to commanders and supervisors to solicit their support.

1.3.2. Request serviced organizations identify the number of positions to be used for student employment and provide the names of supervisors to be contacted.

1.3.3. Publicize the program to ensure all interested, eligible students are afforded an equal opportunity to apply. Publicity should include information regarding eligibility criteria, types of positions available, duration of employment, work schedules (full or part-time), weekly and daily duty hours, rate of pay, procedures to follow in applying for work, need for possessing a Social Security Account Number (SSAN), and other information deemed appropriate or necessary.

1.3.4. Develop employment plans that will ensure maximum employment opportunities for all eligible applicants.

1.3.5. Train supervisors and orient employees.

1.3.6. Ensure early coordination with local customer service representative to determine appropriate organization information is in the Defense Civilian Payroll System.

2. Employment Eligibility, Work Assignments, Hours of Work, and Pay and Benefits.

2.1. **Employment Eligibility.** Family members defined in **Attachment 1** are eligible for employment under this instruction, subject to the following conditions:

2.1.1. Students who are 14 or 15 years old will be employed only after the supply of older applicants has been exhausted.

2.1.2. Unmarried children who are less than 23 years of age and appointed under this program may be retained beyond their 23rd birthday until the appointment expires or their sponsor departs the area or completes the current overseas tour, whichever occurs first. **(T-0)**

2.1.3. Before employing students under 16 years of age, CPFs must obtain parental written consent for the particular type of work, either clerical or manual. If possible, obtain consent for both types of work to allow for change in duties during employment. **(T-1)**

2.1.4. Personnel assigned to work in medical treatment facilities, food service facilities, and child development centers will be required to comply with any pre-employment physical examinations, including immunizations, which are required for the job. These requirements, in most cases, are determined at the installation level.

2.1.5. Obtain confirmation of student status and acceptable school standing from school officials before school year employment.

2.1.6. Promptly terminate individuals who have lost student status or who do not maintain an acceptable school standing from school year enrollment.

2.1.7. Observe restrictions on the employment of relatives as prescribed in Title 5, Code of Federal Regulations, Part 310, *Employment of Relatives*.

2.1.8. Students must reside with the sponsor within the vicinity or commuting area of the employing activity to be eligible for appointment and continuous employment. **(T-0)**

2.1.9. Investigative requirements for students hired under the provisions of this instruction are limited to a local files check (LFC) with the following exceptions:

2.1.9.1. Students employed in child care or youth activities must be at least 18 years of age and meet the provisions of the law. However, if a temporary employee (student) is placed in such a position for less than 60 days and line-of-sight supervision is provided, a state criminal history repository check (SCHRC) is not required. Students so hired must be placed under close supervision and under no circumstances be allowed unaccompanied access to children until the LAC and national agency check (NAC) process is completed.

2.1.9.2. Students age 18 and older employed for more than 6 months are subject to a national agency check and inquiry (NACI).

2.1.9.3. For specific guidance, see AFI 31-501, *Personnel Security Program Management* and USAFE-AFAFRICA Supplement.

2.1.10. Students employed under these programs must present proof of a valid SSAN.

2.2. **Work Assignments.**

2.2.1. Assignments will be against the appropriate position description.

2.2.1.1. Work may range from general, unskilled, trainee-level duties to some low-medium skilled assignments involving application of knowledge (acquired in school, by hobbies, etc.) or tools, crafts, office machines and equipment, stock handling, or other work operations or processes. Work may involve manual labor and simplified clerical work. Students with cardio-pulmonary resuscitation (CPR) and senior lifesaving certification may be assigned lifeguard duties.

2.2.1.2. Duties that clearly require prior experience or specialized training should not be assigned under the provisions of this instruction.

2.2.2. Jobs and work sites should be hazard-free. Apply all prescribed safety devices and procedures to preclude injuries to assigned personnel. Do not assign students to positions requiring hazardous duty.

2.2.2.1. Personnel will attend any required safety and health training required of the position that they are assigned.

2.2.3. Supervisors will control work assignments to ensure students are not assigned duties that will demand performance beyond their physical capabilities. In case of doubt, supervisors will schedule appropriate medical examinations both before and at the termination of employment.

2.2.4. Student employees must receive close supervision and guidance.

2.3. **Hours of Work.**

2.3.1. Summer Employment.

2.3.1.1. The workweek will not exceed 40 hours; however, this may be spread over 5 or 6 days. Work may be scheduled for weekends. No workday will exceed 8 hours.

2.3.1.2. Do not schedule duty hours between 2200 and 0600 for student employees under age 18.

2.3.2. School Year Employment.

2.3.2.1. Except for weeks that include vacations periods, the workweek will not exceed 20 hours.

2.3.2.2. For weeks that include vacation periods, the 20-hour workweek may be extended by 4 hours for each nonschool day other than a Saturday or Sunday, for a maximum workweek of 40 hours if school is closed all week.

2.3.2.3. Work may be scheduled for weekends.

2.3.2.4. Duty hours will not exceed 4 hours on school days and 8 hours on nonschool days.

2.3.2.5. Schedule duty hours only outside the daily school attendance requirements or on nonschool days.

2.3.2.6. Do not schedule duty hours between 2200 and 0600.

2.4. **Pay and Benefits.** The general provisions covering student entitlements under **paragraphs 2.4.2**, **2.4.3**, and **2.4.4** are in **Attachment 2**. For specific information, refer to the applicable reference.

2.4.1. Pay. Pay rates are approved and issued annually by the DoD DCPAS Wage and Salary Division resulting from the DoD Wage Committee. HQ USAFE-AFAFRICA/A1KC will provide CPFs information and guidance as it is received regarding pay rates.

2.4.2. Night Shift Differential. Local commanders must approve use of these funds for student hires. Timecards must be annotated with a remark to reflect commander's approval. For specific guidance, see Title 5, Code of Federal Regulations, Part 532.505, *Night Shift Differentials*, and Title 5, Code of Federal Regulations, Parts 550.121, *Authorization of Night Pay Differential*, and 550.122, *Computation of Night Pay Differential*.

2.4.3. Holiday Pay. For specific guidance see Title 5, Code of Federal Regulations, Part 532.507, *Pay for Holiday Work*.

2.4.4. Leave. For general provisions on coverage, see Title 5, Code of Federal Regulations, Part 630, *Absence and Leave*.

2.4.4.1. Annual Leave. For the earning and granting of annual leave, see Title 5 Code of Federal Regulations, Part 630 Subpart B and C.

2.4.4.2. Sick Leave. For the earning and granting of sick leave, see Title 5 Code of Federal Regulations, Part 630 Subpart B and D.

2.4.5. Performance Management Program. For performance, pay and recognition processes, see DoD Instruction 1400.25, Volume 431, DoD Civilian Management System: Performance Management and Appraisal Program; and AFI 36-1002, Performance Management and Appraisal Program Administration in the Air Force.

3. Appointment Authority, Defense Civilian Personnel Data System (DCPDS) Coding, Funding, and Accounting.

3.1. **Appointment Authority.** Make appointments under the authority of Schedule A, Section 213.3106(b)(6). Nature of action code (NOAC) is 171; nature of appointment is EXC APPT NTE (date). Work schedules are either part-time or full-time. Do not use intermittent work schedules for student employment programs. Employment under this authority is creditable service for purposes of gaining noncompetitive appointment eligibility under Executive Order 12721, *Eligibility of Overseas Employees for Noncompetitive Appointment,* (for specific information see Title 5 Code of Federal Regulations, Part 315.608, *Noncompetitive Appointment of Certain Former Overseas Employees*).

3.2. **DCPDS Coding.** In addition to instructions provided in **paragraph 3.1**, code student employees into the DCPDS with initial transactions as follows:

3.2.1. Pay Plan: AD.

3.2.2. Grade: 00.

3.2.3. Step: 00.

3.2.4. Civilian Employment Category Group: 2.

3.2.5. MAJCOM SPID: SH (Summer Employment); SY (School Year Employment).

3.2.6. Position Status Indicator-Civ: 3.

3.3. **Funding.**

3.3.1. Each installation will fund its own summer and school year program within the constraints of its own resources.

3.4. **Accounting.** Use the following coding for the student programs:

3.4.1. Use Program Element Code (PEC) 28534F in combination with Element of Expense Investment Code (EEIC) 11301, 11502 and Responsibility Center/Cost Center (RC/CC) **0017 for all US citizen youth assigned to student positions.

3.4.2. The servicing Civilian Personnel Flight should seek current fiscal year guidance from their local Comptroller Squadron.

4. Reports.

4.1. Code Air Force appropriated fund personnel hired under these employment programs into the DCPDS. Use data coded in DCPDS for routine reports.

4.2. CPFs should be prepared to respond to special requests for program information from local management or higher headquarters. Such requested information may include:

4.2.1. Statistical information such as the number of applicants; number of available positions (include separate figures for USAFE-AFAFRICA and other commands); number and duration of appointments; or amount of funds spent (separate figures for USAFE-AFAFRICA and other commands).

4.2.2. Summary statements of employee reactions to their employment; summaries of comments from immediate supervisors on the effectiveness of the program; quality of employees, etc.; factors adversely affecting the program; recommendations for improvements.

SCOTT A. ARCURI, Colonel, USAF
Director of Personnel

Attachment 1

GLOSSARY OF REFERENCES, ABBREVIATIONS, ACRONYMS, AND TERMS

References

Executive Order 12721, *Eligibility of Overseas Employees for Noncompetitive Appointment,* July 30, 1990

AFMAN 36-204, *Overseas Employment,* April 11, 2007

Title 5, Code of Federal Regulations, Part 308, *Volunteer Service, current edition*

Title 5, Code of Federal Regulations, Part 310, *Employment of Relatives, current edition*

Title 5 Code of Federal Regulations, Part 315.608, *Noncompetitive Appointment of Certain Former Overseas Employees, current edition*

Title 5, Code of Federal Regulations, Part 532.505, *Night Shift Differentials, current edition*

Title 5, Code of Federal Regulations, Part 532.507, *Pay for Holiday Work, current edition*

Title 5, Code of Federal Regulations, Parts 550.121, *Authorization of Night Pay Differential, current edition*

Title 5, Code of Federal Regulations, Part 550.122, *Computation of Night Pay Differential, current edition*

Title 5, Code of Federal Regulations, Part 630, *Absence and Leave, current edition*

DoD Instruction 1400.25, DoD Civilian Personnel Management System: Employment of Family Members in Foreign Areas, current edition

DoD Instruction 1400.25, Volume 431, DoD Civilian Management System: Performance Management and Appraisal Program

AFI 31-501, *Personnel Security Program Management,* USAFE-AFAFRICA Supplement, January 27, 2005

DODI1400.25V431_AFI36-1002, *Performance Management and Appraisal Program Administration in the Air Force*, November 15, 2016

Abbreviations and Acronyms

ASD—Assistant Secretary of Defense

CPF—Civilian Personnel Flight

CPR—Cardio-pulmonary Resuscitation

DCPDS—Defense Civilian Personnel Data System

DoD—Department of Defense

LFC—Local Files Check

NAC—National Agency Check

NACI—National Agency Check and Inquiry

NOAC—Nature of Action Code

PEC—Program Element Code

RC/CC—Responsibility Center/Cost Center

SCHRC—State Criminal History Repository Check

SOFA—Status of Forces Agreement

USAFE-AFAFRICA—United States Air Forces in Europe and Air Forces Africa

Terms

Dependent Child—A child under age 23, including a stepchild, adopted child, foster child, and a child under legal guardian ship residing with a military member or civilian employee.

Domestic Partner—A person in a domestic partnership with a civilian employee of the same sex.

Domestic Partnership—A committed relationship between two adults of the same sex in which the partners:

(1) Are each other's sole domestic partner and intend to remain so indefinitely.
(2) Maintain a common residence and intend to continue to do so (or would maintain a common residence but for an assignment abroad or other employment-related, financial, or similar obstacle).
(3) Are at least 18 years of age and mentally competent to consent to contract.
(4) Share responsibility for a significant measure of each other's financial obligations.
(5) Are not married or joined in a civil union to anyone else.
(6) Are not the domestic partner of anyone else.
(7) Are not related in a way that, if they were of opposite sex, would prohibit legal marriage in the U.S. jurisdiction in which they reside.
(8) Are willing promptly to disclose any dissolution or material change in the status of domestic partnership.

Family Member—For a military member whose duty station is in a foreign area, the member's spouse or unmarried dependent child.

For a civilian employee, the employee's spouse, domestic partner, or unmarried dependent child, or an unmarried dependent child of the employee's spouse or domestic partner. Family members of locally hired civilian employees are not considered dependents for employment purposes in accordance with DoD Instruction 1400.25. (T—0)

School Year Employment—Temporary part-time employment while attending school on a substantially full-time basis.

Student—A US citizen who is at least 14, but less than 23 years old; enrolled or has been accepted for enrollment (during upcoming semester or quarter) on a substantially full-time basis as a resident (actual physical attendance) student of a secondary school or an institution of higher learning. For individuals graduating from a secondary school who have not yet been accepted into an institution of higher learning, a statement from the sponsor or parent and verified by the secondary school principal or counselor that application has been made is adequate evidence to

qualify as a student. **Student Work—**Necessary work defined in **paragraph 2.2** which normally must be accomplished by temporary overhire or for which no other labor resources are available.

Summer Employment—Temporary full-time or part-time employment during the normal school year summer vacation.

Attachment 2

STUDENT EMPLOYEE PAY AND LEAVE ENTITLEMENTS

A2.1. Student Employee Entitlements.

Table A2.1. Student Employee Pay and Leave Entitlements.

		PAY		LEAVE		
STUDENT PROGRAM	**APPOINT-MENT LENGTH**	**SHIFT DIFF**	**HOLIDAY PAY**	**ANNUAL**	**SICK**	**LWOP**
Summer Program	Less than 90 days	Yes (see notes 1 & 3)	No	No	Yes	Yes
	More than 90 days or employed 90 days or more without a break in service	Yes (see notes 1 & 3	Yes	Yes	Yes	Yes
School Year Program	Less than 90 days	Yes (see notes 2 & 3)	Yes	No	Yes	Yes
	More than 90 days or employed 90 days or more without a break in service	Yes (see notes 2 & 3)	Yes	Yes	Yes	Yes

NOTES:

1. Do not schedule duty hours of student employees under age 18 between 2200 and 0600.

2. Do not schedule duty hours between 2200 and 0600.

3. Annotate timecards with a remark to reflect local commander's approval of the use of these funds.